सत्यमेव जयते

HANDBOOK

BRIEF ON THE CONSTITUTION OF INDIA (FOR MILITARY OFFICERS)

युद्धाय कृत निश्चयः

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FOREWORD

The Constitution of India is the supreme law of the land—an enduring expression of our nation's ideals, sovereignty and democratic spirit. For officers of the Indian Army, who swear allegiance to the Constitution and serve with honor under its mandate, understanding its essence is not just valuable—it is foundational.

This book offers a concise and clear distillation of the Constitution, highlighting its core principles, structure, the rights and duties it enshrines. It is designed to serve as a ready reference and a thoughtful companion for officers who bear the dual responsibility of defending the nation and upholding its constitutional values.

In peace or in conflict, in command or in counsel, may this work serve as a reminder that discipline, duty and democracy go hand in hand.

Mhow
Sep 2025

Lt Gen HS Sahi
Commandant

सत्यमेव जयते

THE CONSTITUTION OF INDIA

PREAMBLE

We, THE PEOPLE of India, having solemnly resolved to constitute India into a [SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC][1] and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all

FRATERNITY assuring the dignity of the individual and the [unity and integrity of the Nation][2];

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OVERSELVES THIS CONSTITUTION.

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1 Subs. for "SOVEREIGN DEMOCRATIC REPUBLIC" by the Constitution (Forty-second Amendment) Act, 1976, S.2 (w.e.f. 3-1-1977).

2 Subs. for "unity of the Nation" by the Constitution (Forty-second Amendment) Act, 1976, S.2 (w.e.f. 3-1-1977).

SECTION I

OVERVIEW : THE CONSTITUTION OF INDIA

1. **Introduction**. The Constitution of India, enacted on January 26, 1950, is the supreme legal document that defines the framework of India's governance, embodying the principles of democracy, justice and equality. It serves as the foundation for the world's largest democracy, outlining the structure of government, citizens' rights & duties and mechanisms for addressing the nation's diverse needs.

2. **Evolution of the Constitution.** The roots of India's Constitution trace back to the freedom struggle, with early demands for self-governance shaping its development.

3. The continuum began with the Regulating Act (1773), crystallised through the Government of India Act 1935, and Motilal Nehru Report of 1928, laying its early groundwork.

4. A Constituent Assembly was formed in November 1946, to frame a constitution for independent India. Dr. B.R. Ambedkar joined the assembly as chairman of its drafting committee on 29 August 1947. It comprised 389 members (reduced to 299, after partition) representing India's diverse population. Over nearly three years, it held 11 sessions, drawing inspiration from global

constitutions like those of the United States, United Kingdom and Canada while addressing India's unique socio-political context. **The Constitution of India, adopted on 26 November 1949 and effective from 26 January 1950, marked India's transition to a sovereign democratic republic, balancing unity with diversity**.

5. **Layout of the Constitution**. The Constitution is organised like a layered reference book. It begins with a Vision Statement (Preamble), then sets detailed rules grouped into 25 thematic Parts and Articles, followed by practical lists called Schedules and a defined amendment process. New provisions are often inserted with letter suffixes (for example, Article 21A; Articles 239AA–AB; Parts IV-A, IX-A, IX-B, XIV-A). The Legislature, Executive and Judiciary are the three pillars of constitution which derive their powers, rights and procedures from it. The media is often referred to as the "fourth pillar" for its role in holding the government accountable.

5.1 **The Legislature**. This includes the Parliament and state legislative assemblies, which are responsible for debating and enacting laws.

5.2 **The Executive**. This branch, led by the President and the Prime Minister, is responsible for implementing the laws passed by the Legislature.

5.3 **The Judiciary**. Headed by the Supreme Court, this pillar safeguards justice, interprets the Constitution and ensures the other branches operate within constitutional limits. It also protects the fundamental rights of citizens.

5.4 **The Media**. While not a formal branch of government, a free and vibrant press is considered a crucial fourth pillar, acting as a public watchdog that provides information and holds those in power accountable.

6. **Parts of the Constitution**.

6.1 Part I: Union and its Territory (Articles 1–4); It defines India's territorial structure.

6.2 Part II: Citizenship (Articles 5–11); deals with who is an Indian citizen and related rules.

6.3 Part III: Fundamental Rights (Articles 12–35); deals with core civil rights and their enforcement.

6.4 Part IV: Directive Principles (Articles 36–51); deals with policy goals for good governance.

6.5 Part IV-A: Fundamental Duties (Article 51A); enumerates duties of citizens.

6.6 Part V: The Union (Articles 52–151); covers the Executive (President, VP, PM & Council of Ministers), Parliament (Legislature), the Union Judiciary and CAG.

6.7 Part VI: The States (Articles 152–237); deals with Governors, State Legislatures & High Courts.

6.8 Part VII: Repealed; removed by the Seventh Amendment Act, 1956.

6.9 Part VIII: Union Territories (Articles 239–242); deals with the administration of Union Territories (UT).

6.10 Part IX: Panchayats (Articles 243–243O); deals with rural local self-governance.

6.11 Part IX-A: Municipalities (Articles 243P–243ZG); deals with urban local bodies.

6.12 Part IX-B: Co-operative Societies (Articles 243ZH–243ZT); deals with co-operative governance.

6.13 Part X: Scheduled and Tribal Areas (Articles 244–244A).

6.14 Part XI: Union–State Relations (Articles 245–263); deals with legislative and administrative relations between the two.

6.15 Part XII: Finance, Property, Contracts and Suits (Articles 264–300A).

6.16 Part XIII: Trade, Commerce and Intercourse within territory of India (Articles 301–307).

6.17 Part XIV: Services under Union and States (Articles 308–323).

6.18 Part XIV-A: Tribunals (Articles 323A–323B).

6.19 Part XV: Elections (Articles 324–329A); deals with institutions and processes for all elections.

6.20 Part XVI: Special provisions for certain classes, including SC, ST etc (Articles 330–342).

6.21 Part XVII: Official Languages (Articles 343–351); deals with languages of different states and Courts etc.

6.22 Part XVIII: Emergency Provisions (Articles 352–360).

6.23 Part XIX: Miscellaneous (Articles 361–367); deals with protection of President, Governors, Parliament proceedings etc.

6.24 Part XX: Amendment of the Constitution (Article 368).

6.25 Part XXI: Temporary, Transitional and Special Provisions (Articles 369–392).

6.26 Part XXII: Short Title, Commencement, Authoritative Text in Hindi and Repeals (Articles 393–395).

7. **Schedules**. There are 12 Schedules that act like appendices with frequently used lists and tables. Key examples are:-

7.1 **First**. Lists the names and territories of all States and Union Territories.

7.2 **Second**. Salaries/allowances of top constitutional offices.

7.3 **Third**. Forms of oaths and affirmations.

7.4 **Fourth**. Rajya Sabha seat allocation by States/ UTs.

7.5 **Fifth and Sixth**. Administration and control of Scheduled Areas/Tribal Areas.

7.6 **Seventh**. Union, State and Concurrent Legislative Lists (subjects for law-making).

7.7 **Eighth**. Lists the 22 Indian languages.

7.8 **Ninth**. "Protective umbrella" for certain laws, shielding them from judicial review, especially laws related to property.

7.9 **Tenth**. Anti-defection provisions for legislators[3].

7.10 **Eleventh and Twelfth**. Provide constitutional backing to Panchayats & Municipalities and list their respective subjects.

3 Enacted by 52nd Amendment Act of 1985.

8. **Amendments to the Constitution**[4]**.** Article 368 enables Parliament to amend the Constitution by a two-thirds majority, with some provisions requiring state ratification. As of 2025, 106 amendments have been made, reflecting the document's adaptability. However, the **"basic structure doctrine"** established in the 'Kesavananda Bharati' case (1973), ensures that amendments cannot alter the Constitution's core principles, thus safeguarding its essence. Some of the key amendments are enumerated below:-

8.1 **First Amendment (1951)**. Added Articles 31A and 31B to protect land reforms and the Ninth Schedule to impose restrictions on freedom of speech.

8.2 **42nd Amendment (1976)**. Dubbed the "mini-Constitution," amongst others, it added "Socialist" "Secular" and "Integrity" to the Preamble, expanded Directive Principles of State Policy and limited judicial review for particular amendments or laws which cannot be questioned on the grounds that violate fundamental rights.

8.3 **44th Amendment (1978)**. Restored judicial review and curtailed emergency powers to prevent misuse.

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4 Article 368 [Power of Parliament to amend the Constitution and procedure therefor].

8.4 **73rd and 74th Amendments (1992)**. Strengthened local governance through Panchayati Raj and urban local bodies.

8.5 **103rd Amendment (2019)**. Introduced a 10% reservation for economically weaker sections.

9. A firm grasp and detailed understanding of the critical provisions of the Constitution is essential for Military Officers' in discharging their duties. These encompass the Territorial Sovereignty (Part I), Citizenship (Part II), Fundamental Rights (Part III), Directive Principles of State Policy (Part IV), Fundamental Duties (Part IV-A), The Union, i.e. its structure (Part V), Emergency Provisions (Part XVIII) and Special Provisions (Part XXI). Together, these constitutional provisions establish the supreme legal framework governing our sovereign socialist democratic republic and military's constitutional role. A brief on each of these relevant parts has been covered in this book.

SECTION II

PART I - THE UNION AND ITS TERRITORY

General

1. "Part I - The Union and its Territory" establishes India as a Union of States and defines the Republic's territorial framework. It specifies which territories form the Union, empowers Parliament to admit or establish new States & Union Territories and provides procedures for altering States' boundaries and names to meet administrative and national needs. These provisions balance the sovereignty & unity of the Nation with flexibility for territorial reorganisation, enabling orderly integration, governance adjustments and constitutional continuity across diverse regions, while preserving the Union's integrity.

Key Provisions

2. **Article 1 – Name and Territory of the Union**. Declares that "India, that is Bharat, shall be a Union of States." The term "Union" signifies the **indestructible unity of the nation**, even though states may be reorganised.

3. **Article 2 – Admission or Establishment of New States**. Parliament may admit new States into the Union or establish new States.

4. **Article 3 – Formation of New States and Alteration of Areas, Boundaries or Names of Existing States**. The Parliament may form new States, alter boundaries, or change names of existing States. Enactment of such laws requires only a simple majority, not a constitutional amendment.

5. **Article 4 – Laws under Articles 2 and 3**. Provides that such laws are not deemed constitutional amendments under Article 368.

6. To cite an example, India's territorial map has evolved significantly since independence with reorganisation, creation of new States & UTs and Division of States etc, such as: -

6.1 **1956** – States Reorganisation Act (linguistic basis).

6.2 **1960** – Creation of Maharashtra and Gujarat.

6.3 **2000** – Formation of Jharkhand, Chhattisgarh, Uttarakhand.

6.4 **2014** – Telangana carved out of Andhra Pradesh.

6.5 **2019** – Jammu & Kashmir reorganised into two Union Territories (J&K and Ladakh).[5]

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5 States Reorganisation Act, 1956; Andhra Pradesh Reorganisation Act, 2014; Jammu & Kashmir Reorganisation Act, 2019.

7. This flexibility ensures that the Constitution adapts to political, cultural and administrative realities as they present themselves from time-to-time.

Significance for the Armed Forces

8. Salient aspects which merit significance for the Armed Forces are as under: -

8.1 Centralised authority over territory ensures **unity of command** in matters of defence and security.

8.2 Territorial reorganisation often has **operational implications** for deployment, logistics and civil–military coordination.

8.3 The **indivisibility of the Union** under Article 1 reinforces the Armed Forces' role in safeguarding sovereignty and territorial integrity[6].

Summary

9. To summarise, the Part I of the Constitution establishes India as a **Union of States**, empowers Parliament to reorganise territories and ensures the **unity and integrity of the nation**. For the Armed Forces, this framework provides the legal foundation for defending India's sovereignty and adapting to evolving territorial realities.

6 Article 355, Constitution of India (Union's duty to protect States).

PART II - CITIZENSHIP

General

1. "Part II - Citizenship" defines Indian citizenship at the commencement of the Constitution; describing who are citizens by birth, descent, registration, naturalisation and incorporation of territory. It establishes the legal basis for membership of the polity, sets conditions for acquiring and terminating citizenship and provides safeguards against arbitrary deprivation. These rules align individual identity with the constitutional community, enabling the State to regulate rights and duties tied to nationality, while allowing the Parliament, authority to frame laws for citizenship, naturalisation procedures and dispute resolution to reflect changing demographic and national needs.

Key Provisions

2. **Article 5 – Citizenship at the Commencement of the Constitution**. Every person domiciled in India on 26 January 1950, who was born in India, or either of whose parent was born in India, or who has ordinarily been resident for at least five years, became a citizen of India.

3. **Article 6 – Rights of Citizenship of Certain Persons Who Have Migrated from Pakistan**. Persons migrating

from Pakistan before 19 July 1948, were deemed citizens if residing in India. Whereas, those migrating after that date required registration.

4. **Article 7 – Rights of Citizenship of Certain Migrants to Pakistan**. Persons who migrated to Pakistan after 01 March 1947, lost their Indian citizenship, unless they returned under a permit for resettlement.

5. **Article 8 – Rights of Citizenship of Certain Persons of Indian Origin Residing Outside India**. Persons of Indian origin residing abroad could register as citizens at Indian diplomatic or consular offices.

6. **Article 9 – Persons Voluntarily Acquiring Citizenship of a Foreign State**. Any person who voluntarily acquired foreign citizenship ceased to be an Indian citizen.

7. **Article 10 – Continuance of Rights of Citizenship**. Rights of citizenship is subject to any laws made by the Parliament.

8. **Article 11 – Parliament's Power to Regulate Citizenship**. Parliament has been empowered to make laws regarding acquisition and termination of citizenship; exercised through the **Citizenship Act, 1955**, amended multiple times (notably in 1986, 2003, 2005 and 2019).

Implications

9. Citizenship defines the **legal bond between the individual and the State**.

10. The **Citizenship Act, 1955** provides detailed provisions on acquisition (by birth, descent, registration, naturalisation, incorporation of territory) and termination (renunciation, termination, deprivation) of citizenship.

11. The **2019 Amendment** introduced provisions for granting citizenship to persecuted minorities from Afghanistan, Bangladesh and Pakistan[7].

Significance for the Armed Forces

12. Citizenship determines **eligibility for service** in the Indian Armed Forces, though persons of Indian origin and some countries are eligible under special provisions.

13. Migration and refugee flows (e.g. Partition, 1971 Bangladesh crisis) have had direct implications for **national security and military deployment**.

Summary

14. Part II of the Constitution lays down the **foundational principles of Indian citizenship**. While the Constitution defines citizenship at its commencement,

7 Citizenship (Amendment) Act, 2019.

Parliament retains the power to regulate it through legislation. For the Armed Forces, clarity on citizenship is vital for recruitment, deployment and safeguarding national security.

PART III - FUNDAMENTAL RIGHTS

General

1. "Part – III Fundamental Rights" guarantees civil and political rights essential to human dignity, equality and liberty, including equality before law, freedom of speech and religion, protection against arbitrary arrest, cultural and educational rights for minorities. These enforceable rights bind the state and empower citizens to claim legal remedies through courts, shaping democratic governance and limiting state power. Judicial review and constitutional remedies preserve their primacy, while reasonable restrictions balance individual liberties with public order, security and morality, making Part III the cornerstone of constitutional rights protection in India.

Key Provisions

2. **Nature of Fundamental Rights.** Fundamental Rights are **justiciable**, implying that they can be enforced by courts. They act as a **check on arbitrary State power** and guarantee individual rights.[8] Remedies are available under **Article 32**, which Dr B.R. Ambedkar described as the "**heart and soul of the Constitution**."

8 Article 12, Constitution of India.

3. **Fundamental Rights provided by the Indian Constitutions are as under: -**

3.1 **Right to Equality (Articles 14–18):** Equality before law & opportunity in matters of public employment, prohibition of discrimination on the grounds of religion, race, caste, sex or place of birth, abolition of untouchability and titles.

3.2 **Right to Freedom (Articles 19–22):** Freedom of speech, assembly without arms, association, movement, residence, education, profession; protection in respect of conviction; protection of life and personal liberty.

3.3 **Right against Exploitation (Articles 23–24):** Prohibition of human trafficking, forced labour and child labour.

3.4 **Right to Freedom of Religion (Articles 25–28):** Freedom of conscience, practice and propagation of religion.

3.5 **Cultural and Educational Rights (Articles 29–30):** Protection of minority rights to conserve culture and establish educational institutions.

3.6 **Right to Constitutional Remedies (Article 32):** Direct access to the Supreme Court for enforcement of rights.

4. **Suspension of Rights.** The Fundamental Rights can be suspended during a **National Emergency (Article 352)** and some other rights (especially those under Article 19) may be suspended at other times as well. However, protection in respect of conviction, right to life and personal liberty **(Articles 20 and 21**) cannot be suspended.

Implications

5. Fundamental Rights form the **bedrock of Indian democracy**. These ensure **civil liberties** while balancing them with **reasonable restrictions** in the interests of sovereignty, security and public order.

6 The judiciary, through **judicial review**, has expanded the scope of rights (e.g. the Right to Privacy under Article 21)[9] within Indian territory.

Significance for the Armed Forces

7. Article 33 **empowers Parliament to restrict or abrogate Fundamental Rights of Armed Forces personnel to ensure discipline and operational effectiveness**. Officers must thus understand the limits of rights in uniform, **particularly regarding freedom of speech, association and assembly**.

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9 Justice K.S. Puttaswamy vs. Union of India, (2017) 10 SCC 1.

8. At the same time, the Armed Forces are bound to **respect citizens' rights** during Internal Security duties, Counter-Insurgency operations and Aid to Civil Authority.

Summary

9. Fundamental Rights are the **cornerstone of the Constitution**, guaranteeing liberty, equality and justice. However, for us, they provide both a **framework of discipline** (through Article 33) and a **duty of restraint** when operating with other citizens. Knowledge of these provisions is essential for ethical leadership and constitutional military conduct.

PART IV - DIRECTIVE PRINCIPLES OF STATE POLICY

General

1. "Part IV - Directive Principles of State Policy" contains **non-justiciable** Directive Principles that guide the State in framing policies to establish social and economic justice, promote welfare, secure equitable distribution of resources and protect marginalised groups. These principles encourage legislation for adequate livelihood, public health, education, labour welfare and rural development, aiming to create conditions for the fulfilment of fundamental rights. While not enforceable in courts, they are **fundamental to governance**, inform judicial interpretation and legislative priorities, **shaping long-term welfare objectives to build an inclusive and progressive constitutional order**.

Key Provisions

2. Directive Principles of State Policies though **non-justiciable**, they are **fundamental in the governance of the country**[10]**.** They provide **policy guidelines** to the State for establishing a welfare state based on social, economic and political justice. Some of the categories of Directive Principles of State Policies are:-

2.1 **Social and Economic Principles**. Ensure adequate livelihood, equal pay for equal work,

10 Article 37, Constitution of India.

protection of workers, promotion of education and public health[11].

2.2 **Gandhian Principles**. Organisation of Village Panchayats, promotion of cottage industries, prohibition of intoxicating drinks, protection of environment and cattle.[12]

2.3 **Liberal-Intellectual Principles**. Uniform Civil Code, separation of Judiciary from Executive, promotion of international peace and security[13].

3. **Relationship with Fundamental Rights**. Fundamental Rights are justiciable; Directive Principles of State Policies are non-justiciable. **However together, they form the conscience of the Constitution**. The Supreme Court has held that Directive Principles of State Policies must be harmonised with Fundamental Rights to achieve the goals of the Constitution[14].

4. **Judicial Interpretation**. While in '**Kesavananda Bharati' v. State of Kerala**, the Court upheld the **Basic Structure Doctrine**, balancing rights and principles[15], later in **Minerva Mills v. Union of India (1980)**, the Court ruled that giving primacy to Directive Principles

11 Articles 38–43, Constitution of India.
12 Articles 40, 43, 47, 48, Constitution of India.
13 Articles 44, 50, 51, Constitution of India.
14 State of Kerala v. N.M. Thomas, (1976) 2 SCC 310.
15 Kesavananda Bharati v. State of Kerala, AIR 1973 SC 1461.

of State Policies over Fundamental Rights would destroy the Constitution's balance[16].

Implications

5. Directive Principles of State Policy guide **policy-making** in areas such as land reforms, labour welfare, education and environment. These policies have inspired major legislations like the **Right to Education Act (2009)** and **Environmental Protection Laws**.

6. Directive Principles of State Policy provide a **moral compass** for governance, ensuring that state policies align with constitutional ideals.

Significance for the Armed Forces

7. Directive Principles of State Policy emphasise promotion of international peace and security, aligning with India's role in UN peacekeeping and regional stability[17].

8. The principle of equal pay for equal work. It provides protection for workers influencing service conditions and welfare measures for both men and women.

Summary

9. The Directive Principles of State Policy are the **guiding star of governance**, shaping India's socio-

16 Minerva Mills v. Union of India, AIR 1980 SC 1789.
17 Article 51, Constitution of India.

economic and political development. While not enforceable in courts, they provide the **moral and constitutional framework** within which the State must operate. For the Armed Forces, Directive Principles of State Policy reinforce the values of justice, welfare and peace, ensuring that military service remains aligned with the larger constitutional vision.

PART IV A - FUNDAMENTAL DUTIES

General

1. "Part IVA- Fundamental Duties" lists the Fundamental Duties expected from every citizen. They include respect for the Constitution, the National Flag & Anthem, protection of the Nation's heritage, promotion of scientific temper, harmony and environmental conservation. These duties underscore the moral and civic obligations that accompany Constitutional Rights, fostering a culture of responsibility, social cohesion and public-spiritedness. Though non-justiciable, they inform civic education and can guide legislative and executive measures to strengthen citizenship ethics and national integration.

Key Provisions

2. **Origin**. While initially, the Fundamental Duties were not part of the original Constitution. These were introduced by the **42nd Amendment Act, 1976**, following the recommendations of the **Swaran Singh Committee**. Initially ten duties were enlisted; the **86th Amendment Act, 2002** added the duty to provide education to children.

3. **Article 51A lists the Fundamental Duties,** which expects that every citizen of India shall:-

3.1 Abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.

3.2 Cherish and follow the noble ideals of the freedom struggle.

3.3 Uphold and protect the sovereignty, unity and integrity of India.

3.4 Defend the country and render national service when called upon.

3.5 Promote harmony and the spirit of common brotherhood.

3.6 Value and preserve the rich heritage of India's composite culture.

3.7 Protect and improve the natural environment and have compassion for living creatures.

3.8 Develop scientific temper, humanism and spirit of inquiry & reform.

3.9 Safeguard public property and abjure violence.

3.10 Strive towards excellence in all spheres of individual and collective activity.

3.11 Provide opportunities for education to children between 6–14 years (added by the 86th Amendment).

4. **Nature of Duties**. These are **non-justiciable, i.e.** not enforceable by courts. These serve as a **moral and civic code of conduct** for citizens. The Parliament may provide for penalties through legislation (e.g. Prevention of Insults to National Honour Act, 1971).

Implications

5. Fundamental Duties act as a **reminder to citizens** that rights come with responsibilities.

6. They strengthen the **constitutional balance** between individual liberty and collective responsibility.

7. They provide a **framework for civic responsibility**, especially in areas like environmental protection, education and public order.

Significance for the Armed Forces

8. The duty to **defend the country and render national service** directly resonates with the ethos of the Armed Forces.

9. Officers must embody and enforce respect for the **Constitution, National Flag and National Anthem**.

10. Duties such as safeguarding public property and promoting harmony are critical in **counter-insurgency and aid-to-civil-authority operations**.

11. The Armed Forces, by example, reinforce these duties among citizens through discipline, service and sacrifice.

Summary

12. Fundamental Duties complement Fundamental Rights and Directive Principles, forming the **triad of constitutional values**. While not legally enforceable, they provide a **moral compass** for citizens and a **code of conduct** for national service. For the Armed Forces, they reaffirm the constitutional mandate of loyalty, discipline and service to the nation.

PART V - THE UNION

THE EXECUTIVE

General

1. "Part V - The Union" gives out the structure of the Union government by detailing the offices and powers of the President, Vice-President, Council of Ministers, Prime Minister, Parliament, Judiciary and Union executive functions. It defines legislative competence, allocation of subjects between Union and States, financial relations, judiciary review and administrative mechanisms necessary for national governance.

2. These provisions create a parliamentary system where executive accountability, separation of powers and federal balance operate together to manage national affairs, maintain sovereignty and coordinate policies across diverse regions and services[18].

Key Provisions

3. **The President of India.**

3.1 **Article 52** – Provides for a President of India. **Article 53** – Vests the **executive power of the Union** in the President, to be exercised in accordance with the Constitution. The President is the nominal head

18 Constitution of India, 1950, Part V, Chapter I.

of the Army, Navy and Air Force, exercising this role through the elected government.

3.2 **Election and Tenure**. Vide **Article 54** – Elected by an **Electoral College** consisting of elected members of Parliament and elected members of State Legislative Assemblies. Vide **Article 56** – Holds office for **five years**, and eligible for re-election vide Article **58** – Must be a citizen of India, at least 35 years of age and qualified for election as a member of the Parliament.

3.3 **Powers and Functions.**

3.3.1 **Executive Powers**. Appoints the Prime Minister, Council of Ministers, Governors, Judges of the Supreme Court and High Courts and other key officials[19].

3.3.2 **Legislative Powers**. Summons and prorogues Parliament, dissolves the Lok Sabha, addresses Parliament and gives assent to bills[20].

3.3.3 **Judicial Powers**. Grants pardons, reprieves, respites, or remissions of punishment under **Article 72**.

3.3.4 **Emergency Powers**. Exercises extraordinary powers during National, State,

19 Articles 75, 76, 124(2), 217, 155 Constitution of India.
20 Article 85, Constitution of India.

or Financial Emergencies (Articles 352, 356, 360).

4. **The Vice-President of India.**

4.1 **Article 63** – Provides for a Vice-President of India and ex-officio **Chairman of the Rajya Sabha**. Acts as President in case of vacancy, resignation, removal, or absence of the President.[21]

4.2 **Election and Tenure**. Vide **Article 66** – Elected by members of both Houses of Parliament. Vide **Article 67** – Holds office for **five years**, and is eligible for re-election.

Important Aspects

5. The President is the **ceremonial head of state**, while real executive power rests with the **Council of Ministers headed by the Prime Minister**.[22] The Vice-President ensures continuity of governance and presides over the Rajya Sabha, maintaining balance between the executive and legislature.

6. Both these offices embody the **federal and democratic character** of the Constitution.

Significance for the Armed Forces

7. The President, as **Supreme Commander**[23], symbolises the **civilian supremacy** over the military. All

21 Article 64, Constitution of India.
22 Article 74, Constitution of India.
23 Article 53(2), Constitution of India.

defence commissions, promotions of senior officers and declarations of war or peace are issued in the President's name.

8. The Vice-President, by presiding over the Rajya Sabha, influences defence-related legislation and debates.

9. Officers must appreciate that while the President is the **constitutional head**, operational control remains with the **elected government**, ensuring accountability in a democracy.

PARLIAMENT

10. India's Parliament is the apex legislative institution under the Constitution, comprising the **President, Rajya Sabha (Council of States)**, and **Lok Sabha (House of the People)**[24]. It is the embodiment of democratic will and civilian supremacy, and its functioning has direct implications for the Armed Forces in terms of legal authority, budgetary control, and strategic oversight.

Composition and Structure

11. **President of India**. Integral to Parliament; summons sessions, assents to bills, and can dissolve Lok Sabha under Articles 85 and 111.

12. **Lok Sabha**. The members of Lok Sabha are directly elected by the people. They exercise control over the

24 Articles 79–83, Constitution of India.

Executive through debates, motions, and financial scrutiny.

13. **Rajya Sabha**. The members of Rajya Sabha represent the States. They are indirectly elected by the respective State Legislative Assemblies. It ensures federal continuity and deliberative depth.

14. **Legislative Powers**. Parliament legislates under **Article 246** on subjects in the **Union such as Defence, Communication and Finance etc**, among others. It also exercises residuary powers under **Article 248**, enabling it to legislate on matters not enumerated in any list. This includes laws governing emerging technologies, cyber security, online gaming etc.

15. **Emergency Powers**. During emergencies (Articles 352, 356, 360), Parliament authorises executive actions that may suspend federalism and restrict rights. It can extend the tenure of laws and centralise the authority which is critical during external aggression, internal disturbances or breakdown of constitutional machinery.

Significance for the Armed Forces

16. **Relevance**. Parliament enacts laws like the **Army Act, 1950, AFSPA,** and **Inter-Services (Command, Control and Discipline) Bill, 202**3 which govern command, discipline, and operational conduct of the armed forces. Defence budgets, procurement policies,

and strategic doctrines are debated and approved in Parliament. Officers must monitor legislative developments to ensure constitutional compliance and strategic alignment.

17. Understanding Parliament reinforces the principle of **civilian supremacy**, a cornerstone of democratic military conduct. Services must respect legislative oversight, anticipate legal constraints, and integrate constitutional values into leadership and decision-making.

THE UNION JUDICIARY

18. The **Union Judiciary**, headed by the **Supreme Court of India**, is the guardian of constitutional order and the final interpreter of law. Its decisions bind all authorities, including the Armed Forces, and its oversight ensures that military conduct remains within the bounds of legality and constitutional propriety.

19. **Composition and Appointment**. The Supreme Court consists of the **Chief Justice of India** and other judges appointed by the **President** under Article 124. Judges hold office until the age of 65 and are selected through a consultative process involving the Judiciary and the Executive, ensuring independence and impartiality.

Jurisdictional Scope

20. **Original Jurisdiction (Article 131)**. Resolves disputes between the Union and States, crucial during federal tensions or deployment of forces across jurisdictions.

21. **Appellate Jurisdiction (Article 132–136)**. Hears appeals from High Courts and Tribunals, including Armed Forces Tribunal decisions.

22. **Advisory Jurisdiction (Article 143)**. The President may seek the Court's opinion on matters of national importance, including defence-related constitutional questions.

23. **Writ Powers and Fundamental Right**s. Under **Article 32**, the Supreme Court enforces Fundamental Rights through writs like Habeas Corpus, Mandamus, and Certiorari. These are vital in contexts such as military custody, AFSPA zones, and service-related grievances. Officers must ensure that operational conduct respects these rights, especially during internal security duties.

24. **Judicial Review and Military Implications**. The Court exercises **judicial review**, striking down laws or executive actions that violate the Constitution. This includes scrutiny of defence legislation, service conditions, and disciplinary procedures. Landmark

rulings—such as *Lt. Col. A.K. Singh vs Union of India*[25]- have clarified procedural fairness in military justice.

Significance for the Armed Forces

25. Army officers must integrate legal awareness into command decisions. Respect for judicial authority is not merely procedural—it reflects constitutional fidelity. Whether dealing with service disputes, deployment orders or emergency powers, Commanders must anticipate legal scrutiny and uphold the rule of law.

Summary

26. Part V of the Constitution, establishes civilian supremacy, parliamentary control, and legal limits that shape military command, discipline & deployment. The President is ceremonial Supreme Commander, whereas the operational authority rests with the Prime Minister and Council of Ministers. Parliament frames defence law, budgets and emergencies; the Supreme Court reviews executive action and enforces rights. Commanders must ensure orders are lawful, record decisions, consult legal advisers, respect fundamental rights in operations, maintain readiness to operate within constitutional and emergency constraints.

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25 Lt. Col. A.K. Singh vs Union of India, (2004) 9 SCC 65.

PART XVIII - EMERGENCY PROVISIONS

General

1. "Part XVIII – Emergency Provisions" empowers the Union to meet extraordinary situations through proclamations of national, state and financial emergencies, enabling temporary augmentation of central authority to preserve security, constitutional governance and economic stability. It prescribes conditions, limits, parliamentary oversight and judicial review to prevent misuse while ensuring continuity of government during crises.

2. These safeguards balance necessary executive flexibility with democratic accountability, protecting the Constitution's survival without permanently undermining federal structure or civil liberties.

Key Provisions

3. **National Emergency (Article 352)**. Proclaimed when there is a threat to the security of India or any part thereof due to war, external aggression, or armed rebellion. Its implications are that Fundamental Rights under **Article 19** are suspended, Parliament gains power to legislate on State subjects and The Union assumes overriding authority.[26] Notable Example: The **1975–77 Emergency** declared by the then Prime Minister, Smt Indira Gandhi.

26 Articles 353–354, Constitution of India.

4. **State Emergency/ President's Rule (Article 356)**. Invoked when the constitutional machinery of a State fails. The President assumes the functions of the State Government and the Parliament exercises the powers of the State Legislature. Its widely used in Indian politics, though subject to judicial review (e.g. **S.R. Bommai vs. Union of India, 1994**).

5. **Financial Emergency (Article 360).** Proclaimed when the financial stability or credit of India is threatened. In such cases the Union can direct States to observe financial propriety. Salaries of government officials, including judges, may be reduced. This kind of Emergency has **never been invoked** in India's history.

6. Impact on Fundamental Rights. During a National Emergency, **Articles 358 and 359 allow suspension of enforcement of certain Fundamental Rights**. However, **Articles 20 and 21 (protection in respect of conviction and right to life & personal liberty) cannot be suspended, even during emergencies (44th Amendment, 1978)**.

Important Aspects

7. Emergency provisions provide the Union with **extraordinary powers** to safeguard sovereignty and integrity. They also carry the risk of **misuse for political purposes**.

8. Judicial safeguards and constitutional amendments have since tightened the conditions for proclamation.

Significance for the Armed Forces

9. The Armed Forces play a **critical role** during emergencies.

9.1 **National Emergency.** Defence of the nation, internal security and aid to civil power.

9.2 **State Emergency.** Support to civil administration under Union directives.

9.3 **Financial Emergency.** Ensuring continuity of essential defence operations despite fiscal constraints.

10. Officers must remain conscious of the **constitutional limits** of military power, ensuring operations remain under **civilian control**.

Summary

11. Emergency provisions are a **constitutional safeguard** for extraordinary situations, balancing national security with democratic accountability. For the Armed Forces, they define the legal framework for deployment during crises, reinforcing the principle of **civilian supremacy** while ensuring operational readiness.

PART XXI - TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

General

1. "Part XXI - Temporary, Transitional and Special Provisions" of the Constitution contains provisions addressing the transitional arrangements required at the Constitution's commencement and special measures for certain regions and groups, including safeguards for tribal areas, continuation of pre-existing laws and unique administrative arrangements.

2. These clauses smoothened the shift from colonial governance to the constitutional order, permit tailored governance for areas with distinct needs and allow Parliament to make special provisions during periods of reorganisation or integration to maintain stability and respect diversity while implementing constitutional norms.

Key Provisions

3. **Transitional Provisions**. Articles in this Part provided for a **smooth transition** from colonial rule to Republican governance. Examples include continuance of existing laws until repealed or amended; provisions for the President and Governors to exercise certain powers during the initial phase of transition and temporary

powers of Parliament to legislate on State list subjects (Article 369).

4. **Special Provisions for States**. Certain States were accorded **special constitutional status** due to historical, cultural or political reasons. Examples are **Article 370** on Special status to Jammu & Kashmir (abrogated in 2019)[27], **Article 371 and sub-clauses (371A–371J)** on Special provisions for States such as Maharashtra, Gujarat, Nagaland, Assam, Manipur Andhra Pradesh, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka. These provisions addressed issues of autonomy, land ownership, customary law and development needs.

5. **Temporary Provisions**. Many provisions were explicitly temporary, designed to **facilitate India's integration** post-independence. Over time, several have been repealed or rendered redundant through constitutional amendments.

6. **Judicial Interpretation**. The Supreme Court has upheld the **validity of special provisions** as consistent with the federal spirit of the Constitution[28]. However, it has also emphasised that such provisions must not undermine the **unity and integrity of India**.

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27 Article 370, Constitution of India (abrogated by Presidential Order, 2019).
28 State of Nagaland v. Ratan Singh, AIR 1967 SC 212.

Important Aspects

7. These provisions allowed India to **accommodate diversity** while ensuring national unity. They facilitated the **integration of princely states** and addressed regional aspirations.

8. Abrogation of **Article 370 in 2019,** marked a significant constitutional and political development, reorganising Jammu & Kashmir into two Union Territories[29].

Significance for the Armed Forces

9. Special provisions often have **direct operational implications**, particularly in border and disturbance-prone states. For example, the **Article 370 (J&K)** influenced deployment, jurisdiction and coordination with civil authorities. **Article 371A (Nagaland)** and similar provisions are required due to sensitivity to local customs and laws during military operations.

10. Officers must remain aware of these constitutional contexts to ensure **legally sound and culturally sensitive operations**.

Summary

11. Part XXI of the Constitution provide the **flexibility needed for India's transition** from colonial rule to

29 Jammu & Kashmir Reorganisation Act, 2019.

a sovereign republic, while accommodating regional diversities. Though many provisions were temporary, the **special provisions for certain States remain vital** for maintaining unity in diversity.

12. For the Armed Forces, understanding these provisions is essential for effective operations in sensitive regions and for upholding constitutional values.

SECTION III

IMPLICATION FOR MILITARY OFFICERS

1. **Introduction**. Understanding of constitutional mandates, legal boundaries and ethical obligations is key in effective discharge of duties as Military Officers'. Section III of this handbook clarifies Military Officers' role in upholding constitutional values while executing operational duties within a democratic framework. The endeavour is to provide a brief for Officers' in navigating complex civil-military challenges in disturbed areas with professionalism, restraint & fidelity and serve as a foundation for principled command decisions.

2. **Role of the Armed Forces.** The Indian Constitution assigns a critical role to the armed forces in safeguarding the nation's sovereignty and integrity. While the Constitution does not explicitly details their functions, several provisions indirectly outline their responsibilities:-

2.1 **Article 53.** Vests the President, as the Supreme Commander of the Armed Forces, with the authority to exercise control through the Council of Ministers.

2.2 **Defence of India.** The Union List (Seventh Schedule) grants the central government exclusive powers over defence, including the deployment of armed forces to protect national borders and maintaining internal security[30].

30 Constitution of India, Article 246, Seventh Schedule (Union List Entry 2A).

2.3 **Article 352 (Emergency Provisions).** During a national emergency, the armed forces play a vital role in maintaining order and assisting civilian authorities.

2.4 The armed forces, comprising the Army, Navy and Air Force are also deployed for disaster relief, counter-insurgency operations and United Nations peacekeeping missions reflecting their broader role in national and global stability[31].

3. **Privileges of Armed Forces Personnel.** Armed forces personnel enjoy certain privileges and protection under the Constitution and related laws to ensure their efficiency and morale. These are enumerated below: -

3.1 **Legal Protections**. The Armed Forces (Special Powers) Act, 1958 (AFSPA), applicable in disturbed areas, grants personnel immunity from prosecution for actions taken in good faith, though this has been controversial due to human rights concerns.

3.2 **Service Benefits**. Article 309 of the constitution empowers the Parliament to regulate recruitment and conditions of service for persons of defence forces. Laws like the Army Act, 1950 and similar statutes for the Navy and Air Force are the primary law that governs the services; covering discipline,

31 Defence Services Regulations, Para 301; UN Peacekeeping Charter Chapter VI.

conduct, service conditions which are enabled by the President under provisions of Article 33[32].

3.3 **Restrictions on Fundamental Rights.** Article 33 allows Parliament to limit rights like freedom of speech or assembly for armed forces personnel to maintain discipline, which is crucial for security and stability of the nation[33].

3.4 **Exemptions and Allowances.** Personnel receive special allowances, such as high-altitude or field-area allowances and exemptions from certain taxes or duties, recognising the risks and hardships of their service[34].

3.5 These privileges balance the unique demands placed on the armed forces, ensuring their operational effectiveness while safeguarding their welfare.

4. **Responsibilities and Duties of Officers.**

4.1 **Command Responsibility**. Command will be exercised by the senior Officers over his subordinate commanders and administrative authorities subject to specified conditions[35].

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32 Constitution of India, Article 309.
33 Constitution of India, Article 33.
34 Income Tax Act 1961, Section 10 (14).
35 Defence Services Regulations Para 52.

4.2 **Protection of Citizens' Rights**. When exercising force, commanders must minimise collateral[36] harm and respect due process. Protect non-combatants, detainees & wounded[37], ensure medical aid and humane treatment.

4.3 **Accountability.** Maintain accurate records, report use-of-force, preserve evidence and cooperate with lawful investigations[38].

4.4 **Professional Impartiality**. Remain apolitical; avoid any action that appears partisan or sectarian.

4.5 **Stewardship.** Safeguard public property and state resources; avoid misuse of authority or assets[39].

4.6 **Maintenance of Good Order and Discipline.** Internal command climate must reflect constitutional values of equality and secularism[40].

5. **Constitutional Morality: Ethics in Uniform.**

5.1 **Core Principles**. Necessity, proportionality, distinction and humanity[41].

5.2 **Truth in Reporting**. Operational credibility is moral and strategic; never shade facts[42].

36 Defence Services Regulations, Para 306, COAS Commandment No 2.
37 Constitution of India, Article 21; Fourth Geneva Conventions (1949).
38 Army Act, 1950; Section 57.
39 Army Act, 1950, Section 52.
40 Army Act, 1950 Section 63.
41 COAS Commandment No. 1 & 2.
42 Army Act, 1950, Section 63 (False Statements); Defence Services Regulations, Para 317, COAS Commandment No. 6.

5.3 **Lead by Example**. Courtesy to civilians, restraint under provocation and zero tolerance for abuse.

5.4 **Ethical Decision-Making.** Apply "lawful, necessary, proportionate last resort" tests; when in doubt, escalate for legal advice.

6. **Emergencies and Martial Law: Constitutional Applicability.**

6.1 **National Emergency (Article 352).**[43] Fundamental rights under Article 19 may be suspended; Articles 20 and 21 remain intact. Armed Forces secure critical assets, assist civil power and remain under civilian control.

6.2 **State Emergency/President's Rule (Article 356)**.[44] State executive authority shifts; Armed Forces assist civil administration as requisitioned.

6.3 **Financial Emergency (Article 360)**.[45] Administrative and fiscal controls tighten; operational funding may be prioritised; no special coercive powers are conferred on the military.

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43 Ins. by the Constitution (Forty-fourth Amendment) Act, 1978, s. 37 (w.e.f. 20-6-1979).
44 Added by the Constitution (Forty-second Amendment) Act, 1976, s. 50 (w.e.f. 3-1-1977).
45 Constitution of India, Article 360; 44th Amendment Act, 1978.

6.4 **Martial law (Article 34)**. Not defined elsewhere; may be proclaimed in an area facing extreme breakdown of order. Parliament may restrict rights and provide indemnity for acts done to restore order. Any military role remains bounded by necessity, temporariness and restoration of civil authority at the earliest.

7. **Aid to Civil Authority: Legal Basis and Detailed Procedures**.

7.1 **Legal Foundations.**[46] Article 355 (Union duty to protect States); Bharatiya Nagarik Suraksha Sanhita Sections 148–151 (unlawful assemblies and use of Armed Forces); Disaster Management Act, 2005 (HADR framework) & Defence Services Regulations, Chapter VII.

7.2 **Who Requisitions.** District Magistrate/ State Government, through established channels to formation HQ; emergency direct requisition possible[47] with immediate information to HQ.

7.3 **Command Relationship**. Civil authority sets the objective; military commander retains tactical control and force protection[48] responsibilities.

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46 BNSS Sections 148–151; Disaster Management Act, 2005; Defence Services Regulations, Chapter VII.
47 BNSS, 2023 – Section 150; Defence Services Regulations, Para 305.
48 Defence Services Regulations, Para 306 (b).

7.4 **Principles**. Minimum force; proportionality; necessity; graduated response; clear identification; documentation; transparency[49] with lawful oversight.

8. **Suggested Sequence of Action: Aid to Civil Authority**.

8.1 **Requisition and Tasking.** Receive written requisition (or verbal in extremis with subsequent written confirmation). Confirm legal basis (Bharatiya Nagrik Suraksha Sanhita, 2023 section/ Disaster Management Act, 2005) and objective; obtain Rules of Engagement and assign liaison officer to DM/ SP; establish joint coordination cell[50].

8.2 **Pre-Deployment**. Intelligence and ground recce with police; define boundaries, timings and communications. Brief troops on legal powers/ limits, escalation of force and arrest procedures.[51] Ensure non-lethal options, medics, interpreters and recording means (wherever possible).

8.3 **On ground with Magistrate**. Presence of Executive Magistrate is preferred (Bharatiya Nagrik Suraksha Sanhita, 2023 – Sec 150); if unavailable and communication impossible, limited powers

49 Defence Services Regulations, Para 306 (b), (c), (d), BNSS 148-151.
50 BNSS, 2023 – Section 149, Section 150; Defence Services Regulations, Para 303 & Para 304 (a) (b) (c).
51 Defence Services Regulations, Para 305.

under BNSS- Sec 151[52] may be exercised by specified military officers. Issue clear warnings using Public Address system; provide safe exit routes for crowds.

8.4 **Escalation of Force (Indicative Ladder)**. Visible presence → verbal warning → formation change/cordon → shields/batons (if equipped) → tear smoke (if authorized) → aimed fire only on orders of Magistrate/ CO, or in self-defence[53] to prevent grievous harm. Record timings, warnings, rounds fired and medical aid provided.

8.5 **Arrests and Handover**. Use minimum necessary force[54]; conduct search as per law; prepare arrest/seizure memos with witnesses; medically examine detainees if injured; hand over to nearest police station "with least possible delay" along with property and documentation[55].

8.6 **Post-Operation.** After-action report with facts, legal basis, timelines and material evidence; inform chain of command and civil authority. Preserve evidence and cooperate with inquiries, SDM inquests, or judicial review.

8.7 **Protection Clauses**. Actions taken in good faith under BNSS sec 149–150 attract procedural

52 BNSS, 2023 – Sections 150–151.
53 Defence Services Regulations, Para 306 (b), (c), (d), BNSS Section 149.
54 COAS Commandment No. 2, BNSS Section 149.
55 Armed Forces (Special Powers) Act 1958, Section 5, BNSS Section 149.

protections under Section 151[56]; this does not shield unlawful or malafide acts.

8.8 **Humanitarian Assistance Disaster Relief -Specific Addendum.** Under the Disaster Management Act, respond to requests through State Disaster Management Authority/National Disaster Management Authority channels; prioritise life-saving, evacuation, engineering support, communication restoration and logistics; coordinate media information through civil authority[57].

9. Judicial Oversight, Military Justice and Accountability

9.1 **Military Justice System**. The Indian Military judicial system is unique blend of statutory laws and regulations designed to maintain discipline and order within the armed forces. It operates separately from the civilian system, with its own set of laws (eg Army Act, 1950), courts and procedures.

9.2 **Acts and Rules**. While being the citizens of Union of India personnel of the Armed Forces, besides the Bhartiya Nagrik Suraksha Sanhita, are also governed by their respective Acts & Rules viz. Army/ Airforce/ Navy Acts and Rule. In addition, recently the Inter-Services Organisations

56 BNSS, 2023 – Section 151.
57 Disaster Management Act, 2005; NDMA Guidelines.

(Command, Control and Discipline) Act, 2023[58] and Rules, promulgated through a Gazette Notification on 27 May 2025.

9.3 **Armed Forces Tribunal (AFT) Act, 2007**. The Act established AFT to adjudicate disputes and handle appeals for military personnel in India. This act transfers pending cases from civil courts related to the Army Act to the tribunal and allows for appeal against court martial decisions[59]. The tribunal has the powers of a High Court.

10. **The Armed Forces (Special Powers) Act (AFSPA)**. The Armed Forces (Special Powers) Act (AFSPA) enacted in 1958, is a legislation that grants special powers to the Indian Armed Forces in certain areas, allowing them to maintain law and order in regions facing insurgency or terrorism.

10.1 **Provisions of AFSPA**. The Act grants the armed forces under mentioned powers:-

10.1.1 **Shoot to Kill**. Use force, including lethal force, to maintain public order[60].

10.1.2 **Search and Arrest**. Conduct searches and arrests without warrants[61].

58 BNSS, 2023; Inter-Services Organisations (Command, Control and Discipline) Act, 2023 – Gazette Notification dated 27 May 2025.
59 Armed Forces Tribunal Act, 2007 – Sections 14–15.
60 Armed Forces (Special Powers) Act, 1958 – Sections 4 (a)
61 Armed Forces (Special Powers) Act, 1958 – Sections 4 (c)

10.1.3 **Demolish Structures**. Demolish structures believed to be used by militants.[62]

10.2 **Necessity of AFSPA**.

10.2.1 **National Security**. AFSPA helps maintain national security and integrity[63].

10.2.2 **Counter-Insurgency**. The law provides the armed forces with necessary powers to combat insurgency and terrorism.

10.2.3 **Restoring Peace**[64]. AFSPA helps restore peace and normalcy in disturbed areas.

10.3 **Scope and Safeguards**.[65]

10.3.1 **Applicability.** In "disturbed areas" notified by the Central or State government under the relevant AFSPA (regional Acts exist for the Northeast and J&K; some have lapsed or been partially withdrawn)[66].

10.3.2 **Core Powers (Subject to conditions and "due warning")**. Use force, even to causing death, against persons contravening prohibitory orders or bearing arms; arrest

62 Armed Forces (Special Powers) Act, 1958 – Sections 4 (b)
63 Armed Forces (Special Powers) Act, 1958 – Sections 3
64 Armed Forces (Special Powers) Act, 1958 – Sections 2-7; Constitution of India, Article 352.
65 Armed Forces (Special Powers) Act, 1958 – Sections 2–6.
66 Armed Forces (Special Powers) Act, 1958 – Sections 3

without warrant; enter and search; destroy arms dumps and fortified shelters; stop and search vehicles.

10.3.3 **Safeguards and Obligations.** Give clear warning; use minimum force necessary; identify yourself; promptly hand over arrested persons to the nearest police station; prepare seizure/arrest memos; medical examination; maintain custody records.

10.3.4 **Sanction for Prosecution.** No court shall take cognisance without prior government sanction for acts done by service personal in "exercise of powers" under AFSPA[67].

10.3.5 **Command Imperatives.** Written operational briefs; Rules of Engagement rehearsals; body-worn or vehicle cameras where feasible; robust documentation; prompt cooperation with lawful inquiries.

11. **The Inter-Services Organisations (Command, Control and Discipline) Act, 2023**. The Inter-Services Organisations (Command, Control and Discipline) Act, 2023 marks a significant milestone in India's military modernisation efforts. This legislation empowers military commanders to exercise administrative and

67 Armed Forces (Special Powers) Act, 1958 – Sections 6

disciplinary control over personnel from other services in joint operations, fostering greater integration and jointness among the three services. The Inter-Services Organisations Act, 2023 streamlines operations[68] and decision-making processes, enabling the military to respond quickly and effectively to emerging threats. By reducing bureaucratic hurdles and empowering commanders to take decisions, the Act enhances the military's operational efficiency and effectiveness. The Act paves the way for establishing integrated theatre commands, which will further enhance the military's operational capabilities. A unified command structure will enable the services to work together under a single commander, ensuring a cohesive and coordinated approach to operations.

12. **Human Rights, IHL and Rules of Engagement**

12.1 **Human Rights Baseline.** Respect Article 21 in all operations; ensure humane treatment of detainees and wounded; prohibit torture, cruel, inhuman, or degrading treatment[69].

12.2 **International Humanitarian Law (IHL)**. Geneva Conventions obligations; observe principles of distinction, proportionality, military necessity and precaution[70].

68 Inter-Services Organisations (Command, Control and Discipline) Act, 2023 – Sections 3–6.
69 Constitution of India, Article 21; Fourth Geneva Convention.
70 Fourth Geneva Conventions, 1949; Additional Protocols.

12.3 **Rules of Engagement: Essentials**. Positively identify threat; warn when feasible; use minimum force necessary to remove the threat; document each use-of-force decision; immediate medical aid to injured, irrespective of affiliation[71].

12.4 **Detainee Handling**. Search, secure, segregate, safeguard, speed to handover; keep chain-of-custody; notify civil police; provide medical examination.[72]

13. **Civil-Military Relations : Apolitical Professionalism**

13.1 **Civilian Supremacy.** Follow lawful directives of the elected government through Ministry of Defence and Service HQ; keep the military strictly apolitical.

13.2 **Public Communication.** It should be centralised, factual & non-partisan and no political commentary in uniform or on social media; always safeguard classified information[73].

13.3 **Engagement with Local Communities.** Respect customs & traditions and be transparent so that it builds trust and intelligence.

71 Defence Services Regulations Para 305, BNSS 149-150.
72 BNSS, 2023 – Sections 149–150.
73 Army Act, 1950 – Section 21; MoD Social Media Guidelines.

14. **Conclusion**. This handbook underscores solemn duty to uphold constitutional integrity, legality, and disciplined conduct. Officers must lead with clarity, restraint, and unwavering commitment to the rule of law. Whether aiding civil authorities or operating under special mandates, the actions must reflect honour, proportionality, and ethical leadership. This handbook is a reference in command journey—reinforcing the oath to serve with courage, professionalism and constitutional fidelity.

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